

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Delhi **PS:** AC-II Delhi
Year: 2024
FIR No: RC2172024A0018 **Date:** 26/12/2024

2. **Acts & Sections:**

Acts	Sections	R/W Section
PC Act-1988 (As amended in 2018)	13(2) r/w 13(1)(b)	12

3. **Suspected offences:** Disproportionate Assets

(a) **Occurrence of offence:**

Day: **Time Period:**
From Date: 01/09/2018 **To Date:** 18/03/2023

(b) **Information Received at PS:** SPE/CBI/AC-II/New Delhi
Date: 26/12/2024

(c) **General Diary Reference:**

Entry No.: 04
Date: 26/12/2024 **Time:** 18:26:58

4. **Type of Information:** Written

5. **Place of Occurrence:** Meerut

(a) **Direction & distance from PS:**

Beat No.:

(b) **Address:**

Plot No.: **Area:**
City: **Pin:**
State: **District:**

(c) **In case, outside the limit of this Police Station, then**

Name of PS: **District:**

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. Rajesh Kumar Meena

(b) **Father's/Husband's Name:**

(c) **Date/Year of Birth:**

(d) **Nationality:** INDIAN

(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
--------------	---------------	----------------

(f) **Occupation:** Inspector of Police, CBI, AC-II, New Delhi

(g) **Address:**

Plot No	Area	City	State	District	Pin
---------	------	------	-------	----------	-----

7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1

Name: Mr. Deepak Sharma(1), **Designation:** Inspector CGST, **Ministry:** Min. of Finance(Custom And Central Excise)

Address:

House No. 72-73, Ground Floor, Pocket-3, Sector-25, Rohini, Delhi, North West Delhi, NCT Of Delhi

Accused 2

Name: Mrs. Manju Devi(2), **Father/Husband name:** Deepak Sharma

Address:

8. **Reasons for delay in reporting by the complainant/informant:**

No delay

9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
-----------	-----------------	--------------------------

10. Total value of property stolen:

11. Inquest Report/U.D. Case No., if any:

12. First information contents:

A written complaint dated 26.12.2024 has been received from Shri Rajesh Kumar Meena, Inspector of Police, CBI, AC-II, New Delhi. The scanned copy of the complaint is enclosed herewith.

The information prima facie disclosed the commission of offence punishable U/s 13(2) r/w 13(1)(b) r/w 12 of PC Act, 1988 (as amended in 2018) against Shri Deepak Sharma, Inspector, CGST, Meerut and Smt. Manju Devi. Hence, a regular case is registered and entrusted to Shri Jitendra Kumar, Inspector of Police, CBI, AC-II, New Delhi for investigation and report.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO: Jitendra Kumar
Rank: INSPECTOR (AC-II Delhi)
No: 121509

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:

Document name
Complaint_DeepakSharma

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Rajesh
26/12/24

Signature of Officer
in-charge Police Station

Name: Amit Pratap Singh
Rank: SUPDT. OF POLICE (AC-II Delhi)

15. Date and time of dispatch to the Court:

Digitally signed by AMIT PRATAP SINGH
Date: 2024.12.26 18:37:12 IST
Reason:
Location:

To,

The Superintendent of Police
CBI, AC-II, New Delhi

Sub- Complaint for registration of a Disproportionate Assets (DA) case against Mr. Deepak Sharma, Inspector, CGST and his wife Mrs. Manju Devi.

Sir,

A case RC2172024A0004 dated 31.01.2024 has been registered u/s 7, 7A, 9, 10 and 12 of PC Act, 1988 (as amended in 2018), r/w 120-B of the Indian Penal Code on the basis of reliable source information revealing alleged offence of Criminal conspiracy and bribing a public servant, Mr. Deepak Sharma, the then Inspector, Central GST, Meerut by commercial organization.

During the course of investigation, searches have been conducted at the premises of Mr. Deepak Sharma & other accused persons. During the search, huge incriminating documents relating property (immoveable/ moveable), Purchase of jewellery and other investments, have been recovered from the residence of accused Mr. Deepak Sharma at House no. 72-73, Ground Floor, Pocket-3, Sector-25, Rohini, New Delhi. During investigation, the said documents were scrutinized and some more information was collected, which prima facie revealed possession of assets by Mr. Deepak Sharma which was disproportionate to his known sources of income.

Family Background of Mr. Deepak Sharma:

Investigation has revealed that his father's name is Mr. Shiv Sevak Sharma (Age- 70 Yrs Approx.). He was working as a Munim at various transporters. His mother's name is Mrs. Rajpati Sharma and she is a housewife. His wife's name is Mrs. Manju Devi and she also worked as housewife. He have one daughter namely Miss Yogya, studying in class 07th at Queen Merry School, Rohini and one son namely Master Aditya

for na.
PA
26-12-24

Bhardwaj, studying in class 04th at Ryan International Rohini, Sec-25. He has two sisters first one is Mrs. Hemlata Sharma @ Hema. She was married with Mr. Narendra Sharma @ Naresh and the second sister namely Miss Kusum Kumari. She is unmarried and resides with his parents at E-132, Aman Vihar, Kirari Suleman Nagar, Delhi, 110086. He was married with Mrs. Manju Devi on 08 February, 2011. He has two brothers-in-law namely Sanjeev and Deepanshu.

Service particulars of Mr. Deepak Sharma

In January, 2010 he joined MCD as Primary Teacher at New Ashok Nagar School. On 30th June, 2014 he left MCD job and on 01st July, 2014 he joined central excise (Presently CGST) as Inspector at Head Quarter of Central Excise and Customs, CCO, Meerut Zone, Meerut and remained posted on various positions till 2023. During the period 2018 to 2023 he was posted as Inspector on sensitive postings.

Check period

During scrutiny of the documents it has revealed that Mr. Deepak Sharma acquired properties and made huge expenditure during the period 01.09.2018 to 18.03.2023, hence this period is considered as check period for calculating the Disproportionate Assets.

Source of income of Mr. Deepak Sharma

It has revealed that Mr. Deepak Sharma's primary source of income is his salary and allowances from the Central Goods and Services Tax (CGST) department. There are no other known sources of income for him. His wife, Mrs. Manju Devi, files Income Tax Returns (ITRs), and her income is also considered when calculating Disproportionate Assets (DA) for Mr. Deepak Sharma.

During scrutiny of the documents, it is found that Mr. Deepak Sharma and his wife, Mrs. Manju Devi, have acquired assets in the names of their family members, including their children. However, since both the

children are studying in school, only Mr. Deepak Sharma's and Mrs. Manju Devi's incomes are being considered for computation purposes.

Statement 'A' asset at the beginning of check period as on 01-09-2018

As per the available information, Mr. Deepak Sharma was in possession of the following assets amounting to Rs **2,11,909/-** as on 01.09.2018. The details of asset of Mr. Deepak Sharma found as on 01.09.2018 are as under: -

Sl. No.	Details of the Assets	Amount - Rs.
1.	The Balance in the saving bank account bearing no. 50100148321742 maintained at HDFC Bank, Sector 1 Noida Branch in the name of Mr. Deepak Sharma.	0
2.	The balance in the saving bank account bearing no. 30776071497 maintained at SBI, Kamla Nehru Nagar Branch in the name of Mr. Deepak Sharma	1,40,237/-
3.	The balance in the saving bank account bearing no. 21170100043333 maintained with BOB, Sultanpur Majra in the name of Mr. Deepak Sharma	6,836/-
4.	The balance in the saving bank account bearing no. 65155146994 maintained with SBI, Phooth Kalan Branch in the name of Mrs. Manju Devi	24,674/-
5.	The balance in the saving bank account bearing no. 21170100047478 maintained with BOB, Sector-24, Rohini Branch in the name of Mrs. Manju Devi	40,162/-
	Total	2,11,909/-

Statement 'B' Asset at the end of Check period as on 18.03.2023

It has revealed that Mr. Deepak Sharma was in possession of assets amounting to Rs. **47,28,491/-** as on 18.03.2023. All the assets acquired by

Mr. Deepak Sharma are in his name or in the name of his family members.
The details of the assets as on 18.03.2023 are as under: -

Sl. No.	Description of assets (Immovable Assets)	Amount (Rs.)
1.	Immovable Assets Flat/ Apartment at Plot No. 115, 1 st Floor, Sector-25, Pocket-6, Rohini, New Delhi in the name of Mr. Deepak Sharma & Mrs. Manju Devi	22,21,000/-
2.	House at 72, Ground Floor, Pocket-3, Sector-25, Rohini, New Delhi in the name of Mrs. Manju Devi	7,00,000/-
3.	House at 73, Ground Floor, Pocket-3, Sector-25, Rohini, New Delhi in the name of Mrs. Manju Devi	7,00,000/-
4.	Land or Plot of land at Khasr-1290C, Khatoni-71, Village- Thapliya, Mehraagaon, Naukuchiyatal, Uttarakhand in the name of Mrs. Manju Devi	2,00,000/-
5.	The Balance in the saving bank account bearing no. 50100148321742 maintained at HDFC Bank, Sector 1 Noida Branch in the name of Mr. Deepak Sharma at end of check period	12717/-
6.	The balance in the saving bank account bearing no. 30776071497 maintained at SBI, Kamla Nehru Nagar Branch in the name of Mr. Deepak Sharma at end of check period	6,072/-
7.	The balance in the saving bank account bearing no. 21170100043333 maintained with BOB, Sultanpur Majra in the name of Mr. Deepak Sharma at end of check period	0
8.	The balance in the saving bank account bearing no. 65155146994 maintained with SBI, Phooth Kalan Branch in the name of Mrs. Manju Devi at end of check period	0
9.	The balance in the saving bank account bearing no.	8,80,702/-

	21170100047478 maintained with BOB, Sector-24, Rohini Branch in the name of Mrs. Manju Devi at end of check period	
	Total	47,28,491/-

Statement "C" Income during the period 01.09.2018 to 18.03.2023

It has revealed that Mr. Deepak Sharma has received total income of **76,10,475/-** from all known sources of income, during the period 01.09.2018 to 18.03.2023, the details of which are mentioned as under :

Sr. no.	Description	Amount
1.	Net salary income of Mr. Deepak Sharma during the check period	37,74,573/-
2.	Income of Mrs. Manju Devi W/o Mr. Deepak Sharma during the check period	18,21,549/-
3.	Loan from HDFC Bank Ltd. for purchase the Plot No. 115, 1st Floor, Sector-25, Pocket-6, Rohini, New Delhi (Sanctioned on 22 April, 2022)	20,00,000/-
4.	Interest credited in saving bank account bearing no. 50100148321742 maintained at HDFC Bank, Sector 1 Noida Branch in the name of Mr. Deepak Sharma	1,722/-
5.	Interest credited in saving bank account bearing no. 30776071497 maintained at SBI, Kamla Nehru Nagar Branch in the name of Mr. Deepak Sharma	3,139/-
6.	Interest credited in saving bank account bearing no. 21170100043333 maintained with BOB, Sultanpur Majra in the name of Mr. Deepak Sharma	801/-

7.	Interest credited in saving bank account bearing no. 65155146994 maintained with SBI, Phooth Kalan Branch in the name of Mrs. Manju Devi	3,181/-
8.	Interest credited in saving bank account bearing no. 21170100047478 maintained with BOB, Sector-24, Rohini Branch in the name of Mrs. Manju Devi	5,001 /-
9.	Interest credited in fixed deposit account bearing no. 50300279849812 maintained with HDFC Bank, Sector-1, Noida Branch in the name of Mr. Deepak Sharma	244/-
10.	Interest credited in fixed deposit account bearing no. 50300280126700 maintained with HDFC Bank, Sector-1, Noida Branch in the name of Mr. Deepak Sharma	98/-
11.	Interest credited in fixed deposit account bearing no. 50300281179122 maintained with HDFC Bank, Sector-1, Noida Branch in the name of Mr. Deepak Sharma	98/-
12.	Interest credited in fixed deposit account bearing no. 50300287656366 maintained with HDFC Bank, Sector-1, Noida Branch in the name of Mr. Deepak Sharma	49/-
13.	Interest credited in fixed deposit account bearing no. 50300309222920 maintained with HDFC Bank, Sector-1, Noida Branch in the name of Mr. Deepak Sharma	20/-
	Total	76,10,475/

Statement "D" expenditure during check period 01.09.2018 to
18.03.2023

It has also revealed that Mr. Deepak Sharma and his family members incurred total expenditure of Rs **69,81,853/-** under various heads during the period 01.09.2018 to 18.03.2023, the details of which are mentioned as under :

S.no	Details of the Assets	Amount - Rs.
1.	Expenditure towards premium of HDFC Life Policy no. 21380561 in the name of Mrs. Manju Devi.	5,89,240/-
2.	Expenditure towards premium of ICICI Prudential Life Insurance Policy no. 20510314 in the name of Mr. Deepak Sharma.	0
3.	Expenditure towards premium of ICICI Prudential Life Insurance Policy no. 32222901 in the name of Mr. Deepak Sharma.	2,62,488/-
4.	Expenditure towards Premium of LIC Policy No. 144292001 in the name of Mrs. Manju Devi.	47,268/-
5.	Expenditure towards Premium of LIC Policy No. 147931266 in the name of Yogya A d/o Deepak Sharma	61,245/-
6.	Expenditure towards Premium of LIC Policy No. 147931267 in the name of Aditya A Bhardwaj S/o Deepak Sharma	52,458/-
7.	Total Fund added in the DEMAT Account bearing no. 1203320041351091 held in the name of Mrs. Manju Devi.	18,64,203/-
8.	Expenditure towards the stamp duty paid for the purchase of Plot no. 73, Ground Floor, Pocket-3, Sector-25, Rohini, Delhi	28,000/-
9.	Expenditure towards the registration fee for the purchase of Plot no. 73, Ground Floor, Pocket-3, Sector-25, Rohini, Delhi	7,000/-

10.	Expenditure towards the stamp duty paid for the purchase of Plot no. 72, Ground Floor, Pocket-3, Sector-25, Rohini, Delhi	28,000/-
11.	Expenditure towards the registration fee for the purchase of Plot no. 72, Ground Floor, Pocket-3, Sector-25, Rohini, Delhi	7,000/-
12.	Expenditure towards the stamp duty paid for the purchase of Plot no. 115, First Floor, Pocket-6, Sector-25, Rohini, Delhi	75,000/-
13.	Expenditure towards the registration fee for the purchase of Plot no. 115, First Floor, Pocket-6, Sector-25, Rohini, Delhi	15,000/-
14.	Expenditure towards to payment of jewellery from Tanishq purchase on 17.01.2021	67,848/-
15.	Expenditure towards to payment of jewellery from Tanishq purchase on 19.02.2021	20,565/-
16.	Amount deposited to PPF account bearing no. 31463526208 maintained with SBI, Phooth Kalan Branch in the name of Mr. Deepak Sharma during the Check Period	39,000/-
17.	Expenditure toward the school fees of Master Aditya Bhardwaj	4,37,719/-
18.	Inventory of house hold items purchased during the check period	93,000/-
19.	House Hold expenditure (1/3rd of net salary)	12,58,191/-
20.	Amount paid to loan account of HDFC Bank	8,51,128/-
21.	Amount paid to loan account of SBI, Kamala Nehru Nagar	6,75,422/-
22.	Expenditure towards the school fees of Ms. Yogya	2,28,320/-
23.	Mrs. Manju Devi claims a deduction under Section 80GG of the Income Tax Act for rent paid during the	60,000/-

	Assessment year 2021-22	
24.	Expenditure towards premium of policy no. DL-115898-CS in the name of Mr. Deepak Sharma	2,13,758/-
	Total	69,81,853/-

It has revealed that that Mr. Deepak Sharma was found to have acquired asset of Rs. **2,11,909/-**, income of Rs. **76,10,475/-** and expenditure of Rs. **69,81,853/-** during the period 01.09.2018 to 18.03.2023. As such he had disproportionate assets as on 18.03.2023 as under:-

Sl. No.	Details of Statements	Amount in Rs.
1	Assets at as on 01.09.2018 (A)	2,11,909/-
2	Asset as on 01.09.2018 (B)	47,28,491/-
3	Income during 01.09.2018 to 18.03.2023 (C)	76,10,475/-
4	Expenditure during the period 01.09.2018 to 18.03.2023 (D)	69,81,853/-
5	Asset acquired during the period 01.09.2018 to 18.03.2023 (B-A)	45,16,582/-
6	Likely saving during the period 01.09.2018 to 18.03.2023 (C-D)	6,28,622/-
7	Total Disproportionate Assets	38,87,960/-
8	Percentage of DA	51.08%

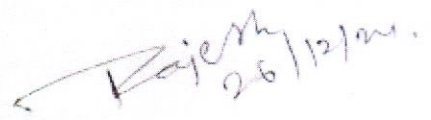
• DA Amount = Assets (Immoveable/Moveable) acquired during the check period + Expenditure incurred during the check period – total income of Mr. Deepak Sharma and Mrs. Manju Devi during the check period.

$$\begin{aligned}
 \text{DA amount} &= (B-A)+D-C = (47,28,491-2,11,909)+ 69,81,853-76,10,475 \\
 &= 38,87,960/-
 \end{aligned}$$

$$\begin{aligned}\text{DA \%} &= \text{DA amount} \times 100 / \text{total income} \\ &= 38,87,960 \times 100 / 76,10,475 \\ &= 51.08 \%\end{aligned}$$

The aforesaid calculation clearly established that accused Deepak Sharma in connivance with his wife Mrs. Manju Devi was found in possession of assets, which are disproportionate to their all known legal sources of income to the extent of Rs. **38,87,960/- (51.08%** during the Check Period 01.09.2018 to 18.03.2023). The most of the assets have been acquired by accused Deepak Sharma in the name of his wife Mrs. Manju Devi.

The aforesaid acts on the part of Mr. Deepak Sharma and Mrs. Manju Devi prima facie constitute the commission of cognizable offences punishable u/s 13(2) r/w section 13(1)(b) r/w Section 12 of PC Act, 1988 (As amended in 2018), hence a regular case may registered against them.


Rajesh Kumar Meena
Inspector of Police
CBI, AC-II, New Delhi